

WORKFLOW FOR DATA PROTECTION LICENSES

STAGE	KEY ACTIONS	OUTPUT	LEGAL BASIS	LEGAL FEES	TIMELINE
SECTION 1: DATA CONTROLLER/PROCESSOR REGISTRATION					
1. Client onboarding and conflict check	- Conduct conflict search - Discuss the client's needs, objectives, and requirements for the desired services. - Sign engagement / retainer agreement	Engagement / retainer agreement Client file	- Art 139 of internal rules of RBA¹ - DPO registration guide.	30,000 RWF (Opening file-article 21 of RBA regulation ²)	Within 4–8 hrs of first contact
3. Pre-registration file assessment	- Conduct Legal analysis on the operations of the company/entity to identify If It falls under data processors, controllers or both. - Confirm whether the client operates in Rwanda or processes personal data of people located in Rwanda from outside Rwanda. - Identify whether the client transfers/stores data outside Rwanda or intends to do so.	Legal opinion	- Arts. 29 & 30 of DPP Law³ - DPO⁴ guidance on determining controller/processor role	RWF 100,000–300,000 Art. 22(1) RBA	24–72 hrs after instruction

¹ internal rules and regulations of the Rwanda Bar Association

² RBA regulation no1/2014 fixing the scale of fees for advocates

³ Law n° 058/2021 of 13/10/2021 relating to the protection of personal data and privacy

⁴ Data Protection Office

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	4. Advise client on the license(s) needed and how to obtain them				
3. Registration file preparation	1. Fill the data controller/processor's registration form capturing full applicant's details, nature of entity, data description, category of data subjects, sectors, processing purposes, recipients, transfer country, processor's involvement and risks plus mitigation measures. 2. identify the categories of data subjects, personal data types, and processing purposes. 3. Identify data recipients, transfer countries, and security gaps that must be disclosed in the file. 4. Identify risk(s) to personal data, safeguards and security measures in place that must be disclosed in registration form. 5. Draft data processing contracts if needed 6. Application letter addressed to the Chief Executive Officer of NCSA 7. Draft MoU or agreement with a local representative (for controller/ processor who is neither established nor resides in Rwanda but processing the individuals' data located in Rwanda) 8. Draft/ review any additional relevant document that may be required by the regulatory authority including: data subject consent form, data subject consent withdrawal form, parental consent form, parental consent withdrawal form, inventory of processing activities, privacy	1. Signed controller or processor registration application. 2. Data processing Contracts 3. Application letter 4. Data Subject Consent Form 5. Data Subject Consent Withdrawal Form 6. Parental Consent Form & Parental Consent Withdrawal Form 7. Inventory of Processing Activities 8. Privacy Notice 9. Website Privacy Policy 10. Cookie Policy 11. Personal Data Protection Policy 12. Data Protection Impact Assessment Register 13. Data Retention Policy & Schedule 14. Supplier/Third Party Data	1. Articles 6-9 of DPP Law 2. Article 17 of DPP Law 3. Article 30 of DPP Law 4. Article 38 of DPP Law 5. Article 42, 46 and 47 of DPP Law 6. Article 52 of DPP Law 7. Articles 43, 44 and 45 of DPP Law 8. DPO registration guide	2,000,000 FRW – 15,000,000 FRW (art. 23[VII])	3 to 7 days; matter-specific.

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	notice, website privacy policy, cookie policy, personal data protection policy, data protection impact assessment register, data retention policy and schedule, supplier or third-party data documentation, data breach response and notification procedure, data breach register, notification form to data subjects, data breach notification form to the supervisory authority.	15. Data Breach Response and Notification Procedure 16. Data Breach Register 17. Data Breach Notification Form to the Data Subjects 18. Data Breach Notification Form to the Supervisory Authority			
4. Filing Application and follow-up with the supervisory authority	1. Submit the application to the supervisory authority under NCSA, track acknowledgement, and respond to any follow-up questions or requests for clarification. 2. Keeping the client informed on any deficiency notice and prepare supplementary explanations where needed.	1. Filed application and proof of submission.	Art. 29 of DPP Law	500,000 FRW – 3,000,000 FRW (art. 34)	Same day filing; follow-up as needed.
5. Review by the supervisory authority	1. Monitor the statutory review period and manage any regulator queries until the file is accepted. 2. confirm that the submission is complete and ready for issuance.	Regulatory review response file.	Art. 31. of DPP Law	Included above	Up to 30 working days from sending of complete application.
6. Certificate issuance and handover	1. Monitor the statutory review period and follow up until the supervisory authority issues the certificate. 2. Once the certificate is issued, confirm the validity details, store the certificate in the	Registration certificate for a data controller or a data processor.	Art. 31. of DPP Law	Included above	Within 30 working days where requirements are met.

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	matter file, and alert the client to the operational obligations that now attach to the registered status.				
SECTION 2: POST-REGISTRATION MANAGEMENT FOR CONTROLLER / PROCESSOR					
7. Change reporting after issuance	1. Track changes that affect the basis of the certificate, such as changes to the corporate structure, processing purpose, categories of personal data, recipients, or contact details. 2. In case of changes, prepare and file the update notice in the required format, then follow up until the authority records the change. 3. Advise the client on the operational controls that must now align with the registered profile	Change report and updated authority record.	Art. 32 of DPP Law	500,000 RWF – 3,000,000 RWF (art.34)	Within 15 working days from the date of change.
8. Renewal management	1. Track expiry, prepare the renewal file, and submit the application before the certificate lapses. 2. Check whether the current processing reality still matches the original registration and update the renewal narrative accordingly.	Renewal application and renewed certificate.	Art. 33 of DPP Law	Included above	within 45 working days before expiry; authority responds within 30 working days.
9. Modification and cancellation risk control	1. Where the law changes, or where the information in the file materially changes, the firm advises on modification of the certificate. 2. If there is any risk of cancellation due to false information or non-compliance, the firm prepares a corrective response before the authority takes action.	Modification request, remediation note, or response to show-cause notice.	Arts. 34 and 35. of DPP Law	Included above	Immediately after modification
10. Breach and	1. The firm prepares incident notices, complaint	1. Breach notification,	DPO breach notification	Included	Immediately

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complaint handling	responses, evidence preservation notes, and regulator-facing correspondence. 2. coordinate the response timeline with the client so that the compliance record remains aligned with the DPO reporting channels.	2. complaint filing, or response bundle.	and complaint channels; relevant DPP Law obligations.	above	upon incident or complaint.
11. Retention, migration, and closure support	1. Advise on retention periods, lawful retention grounds, destruction at the end of retention, and migration or handover of personal data if the client is changing or closing business. This stage also covers the clean-up of registers, vendors, and archived records so the compliance file remains defensible.	Retention and closure action memo.	Arts. 51 and 52. of DPP Law	Included above	Within 48 hours of instruction
SECTION 3: AUTHORIZATION TO TRANSFER PERSONAL DATA OUTSIDE RWANDA					
12. Threshold assessment for cross-border transfer	1. Confirms whether the intended transfer is actually a transfer outside Rwanda, identify the destination country or countries, and check the legal basis for the transfer. 2. Verify whether the client will rely on authorisation from the supervisory authority, data subject consent, a necessary transfer ground, or another lawful route.	Cross-border transfer assessment note.	Art. 48 and Art. 49; DPO transfer guidance.	RWF 100,000–300,000 Art. 22(1) RBA	24 to 48 hours.
13. Transfer file preparation	1. prepares the transfer authorisation package and align it with the DPO form requirements. The package typically includes the application letter addressed to the Chief Executive Officer of NCSA, the transfer contract with recipient(s), a Data Protection Impact Assessment for the transfer, a Data Flow Diagram, and any	Transfer application dossier.	Art. 49 of DPP Law	500,000 – 3,000,000 (art. 34)	2 to 4 days depending on complexity.

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	supporting documents. 2. Ensure that the contract captures the respective roles and responsibilities of the parties and, where appropriate, aligns the drafting with the DPO standard contractual clauses for transfer outside Rwanda.				
14. Filing and regulator follow-up	1. Fill the application form for external transfer authorization and file it the supervisory authority. 2. monitor queries and supply any extra material requested during review, and tracks the authorisation outcome.	Filed transfer request, proof of submission, and follow-up record.	DPO transfer form instructions; DPO service page for authorization to transfer outside Rwanda.	Included above	24-48 hours
15. Implementation after approval	Once authorisation is granted, the firm updates the client's internal compliance file, confirms that the transfer contract and operational controls match the approved transfer setup, and creates a monitoring task for any future changes in destination, recipient, or security architecture.	Authorisation register and implementation memo.	Art. 48 of DPP Law	Included above	Ongoing after approval
SECTION 4: AUTHORIZATION TO STORE PERSONAL DATA OUTSIDE RWANDA					
16. Threshold assessment and certificate check	1. Confirm that storage outside Rwanda is actually intended and verify that the client already holds a valid registration certificate as a data controller or data processor. 2. The firm then maps the relevant hosting model, backup structure, cloud provider, and data locations so the authorisation request reflects the real storage architecture.	External storage assessment note.	Art. 50. Of DPP Law	RWF 100,000–300,000 Art. 22(1) RBA	24 to 48 hours.
17. Storage	1. completes the storage authorisation form and	Storage authorisation	Art. 50. Of DPP Law	500,000 –	2 to 4 days

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authorisation file preparation	drafts the supporting narrative. The form work includes the organization details, registration number, description of the personal data to be stored, categories of data subjects, reasons for storing outside Rwanda, dataset size or volume, sensitive personal data if any, hosting service providers, destination country or countries, involvement of third parties, applicable data protection laws of the destination country, and the safeguards, security measures, and mechanisms used for protection.	application dossier.		3,000,000 (art. 34)	
18. Hosting and security documentation	2. Obtain or review the hosting agreements, describes the service provider chain, and checks that the security controls are adequate for the categories of data involved. Where there are sensitive personal data or multiple hosting providers, the firm ensures the file explains the extra protections, access restrictions, and any third-party involvement in processing	1. Hosting agreement pack, 2. Data Protection Impact Assessment (DPIA) for hosting personal data outside Rwanda	Art. 50. Of DPP Law	Included above	24-48 hours
19. Filing and review management	1. Submit the completed storage application to the supervisory authority, 2. Monitors the regulator's review, and answers any request for additional documents. 3. Keep the client informed if the authority requests further proof on safeguards, destination law, or hosting arrangements.	Filed application-form-for-external-storage-authorization	Art. 50. Of DPP Law	Included above	24-48 hours
20. Renewal and change	1. Monitor the expiry or renewal cycle for the storage authorisation and prepare the renewal	Renewal application and updated external storage	Art. 51. Of DPP Law	500,000 – 3,000,000	Ongoing after approval

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management for storage	file before the authorisation lapses. 2. The renewal pack is updated with the current registration number, authorization number, storage reasons, dataset volume, hosting agreements, Data Protection Impact Assessment, compliance checklist, and other supporting documents. The firm also manages any change in destination country, hosting provider, or safeguarding model.	file.		(art. 34)	
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